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México 2024: The risks of unchecked power and politicized organized crime

México 2024: Los riesgos del poder sin control y del crimen organizado politizado

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ABSTRACT

The 2024 Mexican election marked a pivotal phase for the country's democracy across multiple dimensions. This election witnessed the inauguration of the country's first female president and the continuation of the ruling party. The governing party coalition achieved a qualified majority in Congress and secured 23 governorships, thus opening unprecedented avenues for enacting constitutional reforms that impact core elements of Mexican democracy, compromising separation of powers and reducing societal accountability. These developments unfolded against a backdrop of escalating violence, positioning the 2024 election as the most violent in recent Mexican political history. With over 100 local candidates directly attacked by criminal organizations during the electoral process, organized crime reaffirmed its role as a significant actor in Mexico's political landscape. Through its intervention in the organization of free elections and the strategic use of violence impacting citizens' rights to vote and be elected, organized crime has demonstrated its capacity to undermine key democratic processes. Therefore, we contend that the 2024 elections, along with three key constitutional reforms that were immediately approved, dismantled horizontal and societal accountability checks and consolidated critical threats to Mexican democracy, through both institutional and non-institutional means.

Key words: Mexico, elections, democratic backsliding, accountability, organized crime

RESUMEN

Las elecciones mexicanas de 2024 marcaron una fase crucial para la democracia del país en múltiples dimensiones. En esta elección se presenció la toma de posesión de la primera mujer presidenta del país y la continuidad del partido gobernante. La coalición oficialista logró una mayoría calificada en el Congreso y aseguró 23 gubernaturas, abriendo así caminos sin precedentes para impulsar reformas constitucionales que afectan elementos centrales de la democracia mexicana, comprometiendo la separación de poderes y debilitando la rendición de cuentas social. Estos acontecimientos se desarrollaron en un contexto de violencia creci-

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ente, convirtiendo a las elecciones de 2024 en las más violentas de la historia política reciente de México. Más de 100 candidatos locales fueron atacados directamente por organizaciones criminales durante el proceso electoral, lo que reafirma al crimen organizado como un actor significativo en el panorama político del país. A través de su intervención en la organización de elecciones libres y el uso estratégico de la violencia que impacta los derechos ciudadanos de votar y ser votado, el crimen organizado ha demostrado su capacidad para socavar procesos democráticos clave. Por lo tanto, sostenemos que las elecciones de 2024, junto con tres reformas constitucionales clave aprobadas de inmediato, desmantelaron los mecanismos de control horizontal y de rendición de cuentas social, consolidando amenazas críticas para la democracia mexicana, tanto por medios institucionales como no institucionales.

Palabras clave: *México, elecciones, retroceso democrático, rendición de cuentas, crimen organizado*

I. INTRODUCTION

Mexico's 2024 election marked a significant and unprecedented victory for the incumbent party, Movimiento Regeneración Nacional (Morena), in both the presidential office and the federal congress. These results are unparalleled in recent Mexican political history, as no previous president had achieved qualified majorities with democratic legitimacy; however, Claudia Sheinbaum now holds this distinction. This electoral triumph was swiftly followed by a series of major constitutional reforms of the judiciary, key autonomous bodies, and the National Guard. These developments must be examined in conjunction with the prominent role that organized crime played in 2024. Throughout the campaign, criminal groups demonstrated their power to infiltrate local politics, directly attacking a record number of candidates and public authorities across the country.

In this article, we scrutinize these concurrent processes and assess their potential impact on Mexico's political regime. We contend that the 2024 elections have consolidated two sources of threat to Mexican democracy, through both legal and extralegal means. First, the electoral outcome and the ensuing constitutional reforms have negatively affected the separation of powers and mechanisms of societal accountability, with clear repercussions for democratic functioning. Second, the increased political influence of criminal groups has profoundly altered local elections and citizen participation, among other key democratic elements. In light of these threats, we provide an initial assessment of the democratic viability in Mexico under the new federal administration led by Claudia Sheinbaum. A critical question remains whether the changes experienced in 2024 represent a natural evolution of a presidency with a legislative supermajority that permits the redesign of the constitution at will, or if they signal a typical example of democratic backsliding via qualified majorities and a weakening of the judiciary.

We structure the paper as follows. First, we review the most relevant features of the 2024 election. Next, we provide a comparative analysis of the novelty and relevance of the election and its surrounding events. We also assess the prospects for Mexican democracy given the results of the election and its aftermath. Finally, we offer some concluding remarks on the immediate challenges to be addressed as we continue to evaluate the Mexican political system in the coming years.

II. THE 2024 MEXICAN ELECTION AND SURROUNDING POLITICAL EVENTS

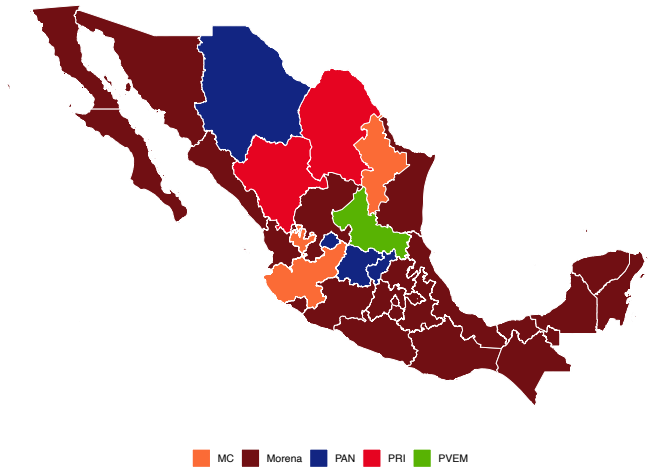
The year 2024 was notably eventful, featuring the organization of one of the largest electoral processes in Mexico in terms of the number of positions up for election, which was marred by over 300 attacks perpetrated by organized crime against candidates *and* public authorities. In this section, we elucidate these events, chart their progression, and highlight their primary characteristics.

An overwhelming electoral victory for the incumbent party

The end of Andrés Manuel López Obrador's administration (2018-2024) was characterized by having the most extensive electoral processes in Mexican history. In addition to the presidential renewal, elections were conducted for the national legislative branch (both the Chamber of Deputies and the Senate), nine governorships, 31 local congresses, and 1,802 municipal governments. Beyond its scope, the election results were equally unprecedented. Mexicans elected the country's first female president, Claudia Sheinbaum, a member of López Obrador's party, Morena, and former Mexico City mayor.

Since the beginning of the year, Sheinbaum was a clear frontrunner with an advantage of over 20 percentage points in polls over her main challenger, Xóchitl Gálvez, from the opposition coalition of the Partido Acción Nacional (PAN), Partido Revolucionario Institucional (PRI), and Partido de la Revolución Democrática (PRD), namely the three main parties of the democratic transition era. Sheinbaum not only secured the presidential office with a decisive majority of the national vote (59.8%), but the partisan coalition between Morena, the Partido del Trabajo (PT), and the Partido Verde Ecologista de México (PVEM) also achieved a notable qualified majority in the legislative branch: 72.8% of the Chamber seats and 64.8% of the Senate seats. Furthermore, following the 2024 election, Sheinbaum's coalition now governs 23 of 32 federal entities (Map 1). The incumbent party successfully retained control of Mexico's capital city and, for the first time, won Yucatán's governorship.

Map 1. Governorships by party after 2024 election



On August 14th, 2024, the Electoral Tribunal validated the electoral process and declared Claudia Sheinbaum as the elected president. However, it should be noted that electoral magistrates Janine Otálora and Reyes Rodríguez issued reasoned votes on the ruling. Otálora asserted that although the electorate's will expressed at the polls must be recognized, it must also be ensured that "the irregularities that occurred are not ignored but discussed and evaluated in contrast with the vote results." Their primary concerns included the early campaigns to select candidates ("actos anticipados de campaña"); the undue intervention of López Obrador in the electoral contest through his repeated statements during press conferences;[1] the escalating violence and the interference of organized crime in the electoral process; and lastly, the incompleteness of the electoral authorities, as the Tribunal had only five out of seven members due to the government's failure to appoint several magistrates. Magistrate Reyes Rodríguez remarked, "there is a considerable gap between the established rules and the political dynamics of the country" (TEPJF 2024).

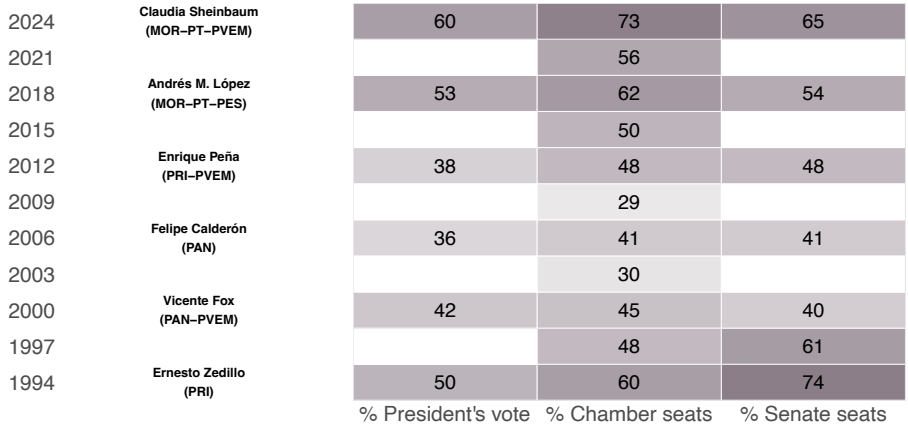
The implications of these electoral results merit careful consideration. First, Mexico had not previously experienced qualified majorities with democratic legitimacy. Such majorities were only present during the hegemonic-party rule of the Revolutionary Institutional Party (PRI) until 1994, when Mexican presidents held supermajorities in either the Chamber of Deputies or the Senate. However, the legislative power held by the PRI was not the result of free and fair elections, as vast scholarship has shown (Molinar, 1991; Cantú, 2019).

Between 1997 and 2000, the PRI lost its majority in Congress and the presidency for the first time (Becerra et al. 2005; Crespo 2012). As indicated in Figure

[1] Article 134 of the Mexican Constitution states that public servants are always obligated to use public resources impartially, without affecting the fairness of competition among political parties.

1, the first three presidents of the democratic era—Vicente Fox (2000), Felipe Calderón (2006), and Enrique Peña (2012)—were elected with plurality votes, leading to a prolonged period of divided government in Mexico from 1997 to 2018. Divided governments did not necessarily imply legislative gridlock, but the negotiation of multi partisan legislative coalitions, ranging from budget approval to constitutional reforms and legislative appointments (Casar 2013).

Figure 1. Presidential and Legislative Elections in Mexico, 1994-2024



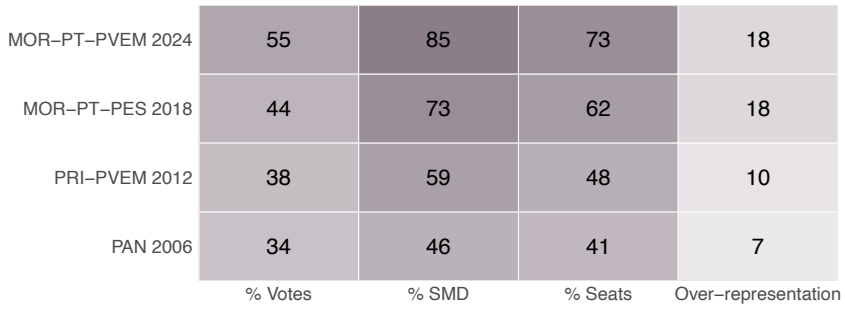
Source: Author's calculations based on official election results from IFE/INE.
Note: Proportion of seats of the president's party coalition at the beginning of each legislative period.

In contrast, López Obrador and Sheinbaum won legitimate absolute majorities, resulting in unified governments formed through widely accepted elections, further strengthened by relatively high presidential approval ratings (Buendía & Márquez 2025). López Obrador used his legislative majorities widely but mostly refrained from negotiating constitutional reforms with the opposition, especially after the 2021 midterm election. And, unlike her predecessor, Sheinbaum secured a qualified majority in both the Chamber of Deputies and the Senate soon after, with the defection of opposition senators (Barragán 2024).

Second, the 2018 and 2024 legislative elections demonstrated unusual levels of disproportionality or overrepresentation. As shown in Figure 2, in 2018, the Morena-PT-PES coalition received 43.6% of the national vote but secured 61.6% of the seats in the Chamber of Deputies. In 2024, the Morena-PT-PVEM coalition obtained 54.7% of the votes, yet captured 72.8% of the seats. Consequently, the winning coalition's overrepresentation in Congress increased from 10.2% in 2012 to over 18% in both 2018 and 2024. This indicates that the legislative majority of Morena's coalition stems not only from its substantial vote share, but also from a strategic distribution of registered candidacies with smaller parties to bypass the constitutional overrepresentation limits (Aparicio and Márquez 2021). Despite having an 8% limit on the difference between seats and votes from each party bench, the Mexican mixed-electoral system exhibits a majoritarian bias. This happens because proportional representation seats are allocat-

ed independently of the number of single-member seats each party wins. The National Electoral Institute's (INE) distribution of proportional representation seats in 2024 was contested before the Electoral Tribunal. However, the Tribunal upheld INE's initial allocation, applying the 8% limit to individual parties but not to coalitions.[2] This important loophole on disproportionality had been exploited before, but without major consequences, as we explore in the next sections. If not addressed through legislation or judicial intervention, future electoral coalitions can continue to find ways around the constitutional limits on overrepresentation.

Figure 2. Votes and seats in the Mexican Chamber of Deputies, 2006-2024



Source: Author's calculations based on official election results from IFE/INE.
Note: SMD stands for Single Member District.

Lastly, the overwhelming victory for Morena and its allies presents a significant opportunity for the incumbent government to implement its legislative agenda. In Mexico, a constitutional reform requires approval from both the Federal Congress and the state legislatures. Specifically, both Chambers of Congress must approve the reform with a two-thirds majority vote of those present, and at least 17 of the 32 state legislatures must approve the reform with an absolute majority. The current power distribution, therefore, enables any constitutional reforms suggested by the ruling coalition without requiring any support from opposition parties. This is exactly what swiftly took place following the 2024 election.

Constitutional overhaul

Three major legislative reforms took place quickly after the newly elected Congress and Senate took office in September 2024. First, a new judicial reform removed all judges and radically transformed the selection, structure, operation, and independence of the judiciary. Second, key autonomous bodies that

[2] There was considerable debate on the proper application of overrepresentation limits. If they had been applied to the winning coalition, it would have received 66.4% of the Chamber of Deputies.

have facilitated societal accountability during the Mexican democratic transition were eliminated. Third, the National Guard was officially incorporated under the command of the Ministry of Defense, effectively integrating it into the military structure and marking a substantial change in Mexico's civil-military relations. In this section, we review the processes that facilitated the first two constitutional reforms, along with their main features.

a) The conflictive path to the 2024 constitutional overhaul

From the outset of his presidency, Andrés Manuel López Obrador (AMLO) confronted the Mexican judiciary. Aguiar, Castro, and Monsivais (2025) note that his initial criticisms were primarily rhetorical, generally accusing judges of corruption and personal enrichment. However, in the latter half of his administration, AMLO's institutional attacks sought to restrict judicial independence. This was triggered by the judiciary ruling several key presidential legal reforms unconstitutional (Aguiar 2024). For example, in April 2023, the Supreme Court ruled the reform that transferred to the Army the operational and administrative control of the National Guard unconstitutional, which had been initially established as a civilian corporation in 2019 (Raziel 2023). Similarly, in June 2023, the Court also considered the electoral reform known as "Plan B" unconstitutional (with 9 out of 11 votes), due to severe violations of the legislative process (SCJN 2023).

Such judicial decisions jeopardized the President's agenda and priorities. Consequently, López Obrador's rhetoric sought to engineer and rally support for a judicial reform, deeply embedding the notion of corruption within the judiciary and its close associations with business and political elites. The President further asserted that judges protected both organized crime and so-called "white-collar crime," thereby compromising its fundamental duty to deliver equitable justice to all citizens. López Obrador even singled out specific judges or courts, accusing them of obstructing investigations or favoring criminal or elite interests (Ríos 2022; Aguiar 2024).[3]

Similarly to the evolution of attacks against the judiciary, Aguiar, Castro, and Monsivais (2025) also identify that López Obrador directed rhetorical critiques towards autonomous institutions integral to the construction of Mexican democracy: the National Institute for Access to Information (INAI) and the National Electoral Institute (INE). The INAI has been a safeguard against corruption and a main promoter of accountability by allowing citizens to request and obtain information about government activities and decisions (Berliner et al. 2018). The INE (formerly IFE) has been a key pillar in the transition toward more free and fair elections, monitoring campaign finances, and ensuring all

[3] The strategic interaction between the executive and the judiciary is context-dependent. Gamboa et al. (2024) analyze cases in which courts asserted their independence when facing regressive reforms in Argentina, Colombia and Mexico. Olaiz-González (2020) analyzes how the Mexican Supreme Court rulings strategically changed at the beginning of Lopez-Obrador term.

parties have access to traditional media (Eisenstadt 2004). Both institutions are autonomous public entities with regulatory and supervisory roles, governed by multiple-member councils, whose appointments require qualified majorities from Congress as a means to ensure independent and non-partisan oversight.

According to the President's narrative, the INAI and INE, along with other autonomous bodies, were excessively costly for Mexican democracy, primarily due to their councilors' high salaries. López Obrador further argued that the responsibilities of the INAI were already conducted by other offices in the federal government structure, disregarding the lack of autonomy in such instances (Petersen and Somuano 2021). The 2021 midterm election period was particularly confrontational between López Obrador and the INE, especially after the latter explicitly requested that the President refrain from holding his morning press conferences during the campaign season.

In April 2022, President López Obrador presented a comprehensive electoral reform initiative to remove all electoral councilors and magistrates and to appoint new electoral authorities through direct popular vote. The initiative also suggested reducing the size of Congress, reforming electoral rules, and limiting public funding for political parties (Cámara de Diputados 2022, April 28). This reform initiative was known as "Plan A." However, on December 7, 2022, this constitutional reform failed to pass in the Chamber of Deputies. On the same day that "Plan A" was defeated, Congress swiftly approved a "Plan B," a reform of electoral laws that pursued similar goals to "Plan A" while avoiding constitutional changes (Cámara de Diputados 2022, December 6). Although Plan B was quickly ratified by Congress, in June 2023, the Supreme Court declared these reforms unconstitutional due to flawed legislative procedures (Martín and Salazar 2023). This ruling intensified AMLO's conflict with the judiciary.

Confrontations with the judicial branch and autonomous bodies permeated the appointment of the members of such institutions. During his administration, López Obrador proposed five Supreme Court justices, while the lower chamber appointed eight INE counselors. However, the Senate failed to designate any electoral magistrates and did not fill three vacancies at INAI, thereby rendering the Institute without a quorum to operate. Rather than seeking consensus, in 2023, the president unilaterally made his last appointment to the Supreme Court. Also, the last four INE counselors, including the presidency, were appointed by lottery in Congress.

b) The dismantling of the judiciary and autonomous bodies (Plan C)

Faced with the failure of Plan A and Plan B, AMLO redirected his efforts towards achieving a qualified majority to approve constitutional, electoral, and judicial reforms: the so-called "Plan C". In addition to radically reforming the judiciary, as we discuss next, "Plan C" included the dismantling of autonomous bodies, under the argument that these institutions were a financial burden,

lacked transparency, and that their roles were already fulfilled by the federal administration. AMLO sent his "Plan C" initiatives to Congress in February 2024, but they were only discussed and voted on *after* the 2024 election, when his coalition had secured qualified majorities in the Federal Congress (Cámara de Diputados 2024).

The judicial reform encompassed seven main elements purposefully designed to address the alleged corruption within the judiciary (DOF 2024, September 15). First, it called for the removal of all existing Supreme Court justices and the staggered renewal of all federal judges, that is to say, a complete renewal of the judicial branch. Second, the new judges would be elected by popular vote, replacing the prior appointment system. Third, the size of the Supreme Court was reduced from eleven to nine justices. Fourth, the tenure of justices was shortened; now, they would serve either twelve or nine years depending on their position, contrasting the previous fifteen-year term for Supreme Court Justices and the life tenure of federal justices. Fifth, the reform established new oversight bodies by eliminating the Federal Judicial Council (*Consejo de la Judicatura Federal*), which was responsible for the administration, oversight, discipline, and judicial career of the Federal Judiciary. It was replaced by a Judicial Administration Body and a Judicial Discipline Tribunal —the latter elected by popular vote—, both with the authority to sanction, suspend, or remove judges. Sixth, the reform included the implementation of "faceless judges" in cases involving organized crime, ostensibly to protect judicial officials from potential threats. Last, the reform stipulated that a judge's salary could not exceed that of the president.

The President's aspiration to reform the judiciary could not materialize until his coalition secured a qualified majority. In September 2024, the newly elected Chamber of Deputies approved and forwarded the judicial reform bill to the Senate, where it received swift approval without any modifications. With a full quorum of 128 senators, the reform required at least 86 votes to achieve a qualified majority. However, the coalition of Morena, the Green Party (PVEM), and the Labor Party (PT) only held 85 seats. Morena senators suggested an additional vote was not necessary (Jiménez and Salidierna 2024). There was no effort to negotiate with the opposition to achieve broader consensus. They persuaded an opposition senator, and another one did not attend the plenary. Ultimately, the reform garnered 86 votes in favor, 41 against, with one senator absent. Given the over twenty state governments under Morena's control, the reform was also swiftly approved by 17 state legislatures in less than 24 hours.[4]

Shortly after the approval of the judicial reform, in late November 2024, the Mexican Congress and Senate, along with the 17 required state legislatures, rapidly approved the reform that dissolved the INAI and six other autonomous

[4] These states included: Aguascalientes, Campeche, Chiapas, Chihuahua, Coahuila, Estado de México, Hidalgo, Jalisco, Michoacán, Nayarit, Nuevo León, Quintana Roo, Sinaloa, Sonora, Tamaulipas, Tlaxcala y Zacatecas.

institutions that regulated essential economic activities and provided crucial policy evaluations (DOF 2024, December 20).[5]

The Mexican constitution has undergone numerous amendments, but rarely with such slim majorities (Casar 2013). In the Mexican democratic era, no constitutional reforms of this scale had been enacted without seeking consensus from at least part of the opposition. Unlike the judicial reform of 1994, the political reform of 1996 or 2014, or even the constitutional reforms during López Obrador's early years, the new legislature enacted major legislative reforms without dialogue or negotiation. The reforms approved in 2024 did not include the political-electoral agenda. However, this does not imply that there will not be an electoral reform, which was also part of Plan C, but only that it was postponed until after the judicial election in 2025.

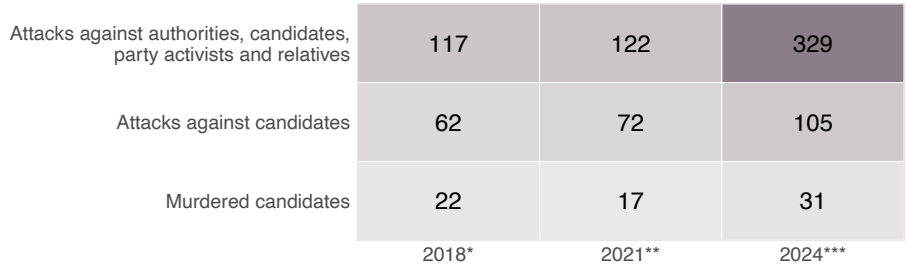
The political role of organized crime in the 2024 elections

Beyond the electoral results and their legislative and political implications, the 2024 election was also notable for another significant dimension: the active and overt involvement of Organized Crime Groups (OCGs) throughout the electoral process. The renovation of the mayorships in 1,802 municipalities took place amid major criminal competition among the more than 200 criminal organizations that violently compete for territorial control across Mexico (Lantia 2021). OCGs sought to secure or renegotiate informal state protection agreements with local authorities—across all party labels—which have existed and persisted through the Mexican authoritarianism and democratic transition periods (Snyder and Durán Martínez 2009; Trejo and Ley 2020). Targeted attacks represent one of the viable options to exert such pressure, particularly during election cycles and where territories are contested among criminal groups (Blume 2017; Trejo and Ley 2020).

As illustrated in Figure 3, organized crime has employed various forms of violence—murders, kidnappings, disappearances, armed attacks, and threats—against a wide range of actors—from public authorities and candidates to party activists and the relatives of these political figures—across each electoral cycle from 2018 to 2024 (Row 1), as well as across all party labels. However, as anticipated, candidates were a primary target of such violence (Row 2), accounting for between one third to one half of the high-profile attacks in each election, with a considerable degree of lethality (Row 3).

[5] The other autonomous bodies that the reform eliminated included: the Federal Economic Competition Commission (COFECE), the Federal Telecommunications Institute (IFT), the National Council for the Evaluation of Social Development Policies (CONEVAL), the Energy Regulatory Commission (CRE), the National Hydrocarbons Commission (CNH), and the National Commission for the Continuous Improvement of Education (MEJOREDU).

Figure 3. Comparison of total criminal attacks against candidates and public authorities across elections, 2018-2024 (from pre-campaign season to Election Day)



Source: Votar entre Balas (https://votar–entre–balas.datacivica.org/).
Note: Attacks include murders, kidnappings, disappearances, armed attacks, and threats.
*From January 1, 2018, to June 27, 2018, the final day of the campaign period.
This period is not entirely comparable, as the Votar entre Balas platform lacks data from prior to 2017.
**From September 7, 2020, to June 2, 2021, the day when the campaigns concluded in 2021.
***From September 7, 2023, to May 25, 2024, the day when the campaigns concluded in 2024.

Looking specifically into the 2024 electoral process period—from September 7, 2023, to May 29, 2024—105 candidates and pre-candidates were attacked by organized crime groups, with 31 of these incidents resulting in fatalities (Votar entre Balas 2024). Additionally, 157 public officials—excluding security and law enforcement personnel—and 42 members of political parties—including activists, militants, and leaders—were also targeted by criminal organizations. Moreover, 25 attacks were directed at the relatives of candidates, aiming to intimidate and dissuade them from continuing their candidacy.

Compared to the previous two federal electoral processes, the 2024 elections were considerably more violent, irrespective of the metric one chooses to focus on. A major distinction in the 2024 election was its scale. Organized crime's primary targets are municipal authorities (80 percent) (Trejo and Ley 2020; Votar entre Balas 2024). The recent election simultaneously renewed municipal governments in 30 of the 32 Mexican states, thereby creating comparatively more opportunities for violence. Past elections did not feature as many concurrent subnational elections. However, even when considering the overall number of high-profile criminal attacks against political figures, the 2018-2024 period was significantly more violent compared to the 2006-2012 period, when the War against Drugs began and violence surged. Trejo and Ley (2020) identified 311 attacks during the 2006-2012 period, whereas the organization Data Cívica (2025), using a similar methodology, counted 1,257 such attacks during the 2018-2024 period. Thus, over time, comparing the onset of the militarized strategy against organized crime in Mexico and the most recent López Obrador administration, violence, as measured through high-profile criminal attacks, has shown a four-fold increase.

It is noteworthy that the federal government did not fully recognize or address this violence and even downplayed its severity. The Secretariat of Security and Citizen Protection (SSPC) reported only 22 federal candidates murdered

during the campaign season (Herrera and Guerrero 2024), neglecting to account for the attacks on local authorities, who constituted the majority of such violence. Additionally, the SSPC disregarded the pre-campaign period, during which organized crime also seeks to exert influence. The federal government's narrative instead focused on the reduction of homicides through the López Obrador administration, with a decline of the homicide rate per 100,000 inhabitants, from 23.09 in 2018 to 19.29 in 2023 (SESNSP 2025). Such declining trend, however, was not reflected in other crime indicators, such as disappearances (RED LUPA 2024) or extortion (SESNSP 2025), which had a steady increase throughout the administration and which, just like high-profile attacks, suggested organized crime attempts to establish its own rules in a multiplicity of municipalities across Mexico.

Despite the evident growing role of organized crime in Mexican subnational politics, the urgent need to strengthen local governments threatened by organized crime in the 2024 election, and the abundant evidence against the effectiveness of militarization in addressing predatory criminal governance (Magaloni et al. 2020), the federal government focused on the approval of a constitutional amendment that would place the National Guard under the command of the Ministry of Defense. As in the case of the judicial reform, this legislative process occurred quickly after the newly elected Congress, with a qualified Morena coalition majority, had taken office. Also, similar to past constitutional changes, President López Obrador had been unable to secure such an amendment in 2022, when his party lacked a qualified majority in Congress. Under the constitutional reform approved in September 2024, the National Guard is integrated into the military structure and the armed forces gain further legal authority over public security matters (DOF 2024, September 30), which was already a growing trend under López Obrador's administration, with a major transfer of various civilian functions to the armed forces (Flores Macías 2023; Velázquez et al. 2024).

III. AN ASSESSMENT OF MEXICAN DEMOCRACY AFTER THE 2024 ELECTION

As noted in our review of the main events that marked 2024 in Mexico, there were significant changes in the overall balance of power, with constitutional reforms dismantling key horizontal accountability checks and reducing civilian control over the military. Other countries have experienced these phenomena, particularly in the Latin American region, to varying extents. Therefore, when providing an overall assessment of the state of Mexican democracy after 2024, we must also analyze what the changes implemented represent or imply, considering the available comparative evidence.

As Diamond (2020) and Nord et al. (2025) indicate, there is a global democratic recession; not only has democracy stopped expanding, but freedoms have

also diminished worldwide. Mainwaring and Pérez-Liñán (2023) have further observed that the Latin American region has played a significant role in the global decline of democracy, with critical cases such as Venezuela, Bolivia, or El Salvador. In their assessment of Mexico in 2023, before the presidential election and the reforms discussed in the previous section, the country showed a lack of democratic deepening or consolidation. The question now is whether Mexican democracy is experiencing backsliding and, if so, to what extent.

There is a growing debate on how to measure democratic backsliding or regime change (Lührmann, et al, 2018; Little & Meng, 2024), as well as whether democracies are resilient to authoritarian threats (Gamboa 2022; Weyland 2024). According to Waldner and Lust (2018), democratic backsliding involves a decline in "qualities associated with democratic governance within any regime."[6] This process unfolds gradually through various possible avenues: by making elections significantly less competitive or reliable; by restricting participation without abolishing universal franchise; or by weakening accountability checks or constraints on governments, namely through the erosion of either elected officials' answerability or the ability of citizens and governing bodies to impose sanctions on undesirable or illegal actions. Notably, the first two avenues emphasize elections and political rights, while the latter concentrates on checks on power and horizontal accountability.

Attacks against the judiciary and executive aggrandizement have become an increasingly common source of democratic backsliding that weakens horizontal accountability. A growing number of populist and non-populist leaders have repeated a pattern of attacks against the judiciary and independent regulatory bodies. Precisely, the constitutional reforms approved in Mexico in the Fall of 2024 replicate such a configuration. In the next section, we assess their implications for Mexican democracy, followed by our evaluation of what the reform to the National Guard represents for civil-military relations and overall security in Mexico.

Erosion of horizontal and societal accountability checks

Overall, following a Manichean logic, populist leaders or executives with hegemonic aspirations are likely to co-opt, or at the very least, neutralize the judiciary and other horizontal checks, given their power to suspend, modify, or nullify laws or acts that contravene both the constitution and the populist leaders' goals of maintaining power over time (Ruth 2018; Ríos 2022). Under this logic, several populist presidents—Jair Bolsonaro, Nayib Bukele, Evo Morales, Vik-

[6] As the growing literature on democratic backsliding illustrates, there are significant empirical and theoretical challenges in determining what constitutes democratic erosion and the most effective ways to measure it (Waldner and Lust 2018; Little & Meng, 2024). The empirical challenge involves assessing a series of discontinuous actions or events. Similar to studies on democratic or regime transitions, there is a challenge in identifying pathways to prevent democratic backsliding.

tor Orban, and Tayyip Erdogan, among others—have intensified their attacks on the judiciary. However, these attacks may or may not evolve into purges of the judiciary, as seen in El Salvador and Bolivia, or into the packing of the courts with profiles favorable to the incumbent, as in Nicaragua (Aguiar 2023, 2024). The analyses by Ruth (2018), Ríos (2022), and Aguiar (2024) identify two key variables for judicial attacks to evolve into consolidated threats and the weakening of the judiciary: the presence of a unified government between the executive and legislative branches and a highly popular president, in contrast to a relatively less popular high court.

Unified governments are not inherently undemocratic. Nonetheless, a unified government that operates with a qualified majority and implements regressive constitutional reforms poses a threat to constitutional democracy. Similarly, presidential approval does not necessarily imply executive aggrandizement, as it translates into legislative success only in specific cases of complex and salient issues (Canes-Wrone and De Marchi 2003). However, the 2024 judicial reform in Mexico appears to have precisely concentrated both variables in their most unfavorable manifestations.

a) The implications of the judicial reform for horizontal accountability

After the 2024 election, President López Obrador was backed with an over 70 percent presidential approval (Buendía and Márquez 2024) and could count on a legislative majority that facilitated the reform of key aspects of the constitution without needing to negotiate with opposition parties or organized civil society. In such a context, the resulting judicial reform has now also enabled an overhaul of the constitutional courts.

The immovability of judges is a fundamental principle of judicial independence. Also, the staggered renovation of high courts helps ensure that the preferences of a single president or legislature do not dominate the judiciary. Therefore, dismissing all justices and judges to reset the judicial branch, as the reform implies—even if occurring in a staggered process—can be considered as a *purge* that fundamentally undermines the separation of powers. Interestingly, under the previous nomination process, López Obrador had already proposed five of the eleven justices to the Supreme Court during his term. President Sheinbaum could have nominated a sixth justice in November 2024 without reforming the constitution. Despite this, the judicial reform removes all justices, along with federal and local judges, starting with a clean slate.

Under the 2024 judicial reform, new judges will be appointed through direct popular elections from a list of candidates previously selected by ruling party operatives. The Supreme Court will be completely renewed in 2025 and all federal judges will be replaced in staggered elections between 2025 and 2027. The implementation of this feature, given the current balance of power in the Mexican government, can be considered *court packing.* Two-thirds of the candidates for judicial positions were evaluated and pre-approved by evaluating

committees from the executive and the legislative, which the ruling party dominates, and were mainly composed of government supporters and partisan allies. Moreover, since the judiciary chose not to present a final list of candidates, the Senate put forth the remaining candidates. Consequently, the Mexican judicial reform can be considered more radical than that of Evo Morales in Bolivia, where fewer judges were removed and, at least by design, the executive did not directly nominate candidates; instead, only the National Assembly has the prerogative to craft the list of judicial candidates.

The novelty of organizing a nationwide judicial election in June 2025 also imposes serious risks. The reform stipulates that public or private financing of campaigns is prohibited, and political parties cannot participate in the judicial election in any capacity—not in monitoring voting stations or in INE's district councils. If the Bolivian experience serves as any guidance (Driscoll et al. 2019), the electorate does not necessarily support voting for partisan candidates to the judiciary.[7] In the Mexican case, since the 2025 judicial election did not coincide with any other federal races and the new ballot was quite complex, turnout was anticipated to be considerably low.

Given the complexity of an unprecedented process, INE requested an extension from Congress to delay the judicial election for a few months; however, this request was denied. Additionally, the electoral institute received only a third of its requested budget from Congress to organize the judicial election with the same level of quality and reliability as the general elections it has organized for decades. As a result, instead of reforming or strengthening the judiciary with the consensus of other political forces, the government chose to completely dismantle the courts, in order to replace all judges nationwide through a complicated election that seems designed to fail.

The judicial reform will also open more opportunities for organized crime to influence the political sphere and deepen its social controls. First, as Trejo and Ley (2020) note, the timing of high-profile attacks is highly associated with election cycles, which represent focal points for OCGs to use violence as a way to influence the succession process and the subsequent decisions of elected authorities. From the nomination process to Election Day, OCGs are interested in imposing their preferences on future authorities (Arias 2017). The use of targeted violence is one of the possible ways to get their preferred profiles selected and, ultimately, influence their policy decisions to favor criminal interests. As the Mexican elections for the past twenty years have shown —though more so in the 2024 electoral cycle— criminal organizations have increasingly been able to use high-profile attacks to influence politics.

The upcoming election of judges opens yet another opportunity to make use of such strategic violence, more so because the capture of the judicial apparatus

[7] Voting is compulsory in Bolivia, however, in the 2011 judicial election there were 42.9% null votes and 14.9% blank votes (Driscoll et al. 2019).

can further expand organized crime's need for protection networks to survive and flourish (Snyder and Durán-Martínez 2009; Trejo and Ley 2020). Organized crime seeks to influence judges' decisions and actions in legal proceedings, from overseeing criminal cases and arrest warrants to the final sentences and appeals they allow. The strategic use of violence in the election process of the judiciary can help OCGs achieve such goals. Extant data suggests that criminal organizations have already begun to target officials that work alongside the judicial branch, mainly investigative and ministerial police officers, who compose five percent of criminal attacks against public officers in Mexico between 2018 and 2024 (Votar entre Balas 2024).

To supposedly protect judges—disregarding the attacks from the executive to the judiciary—the judicial reform also includes the figure of "faceless judges" in cases involving organized crime. However, as the Peruvian and Salvadorian experiences show, faceless judges have been associated with an increase of human rights and due process violations, in addition to its lack of ineffectiveness in protecting judges (Amnistía Internacional 1996; General Assembly 1996; ECOSOC 1998; CIDH 2024). Thus, this aspect of the Mexican judicial reform is likely to also contribute to a further deterioration of the rule of law.

The weakening of horizontal accountability checks on the government has already impacted international evaluations of Mexican democracy. According to the 2025 V-Dem report, which considers assessments as of 2024 (Nord et al. 2025), seven countries in Latin America have experienced significant democratic erosion over the last decade: Bolivia, El Salvador, Guatemala, Haiti, Honduras, Mexico, and Venezuela. Mexico has deteriorated only recently, as its overall liberal democracy index—along with the liberal component, which emphasizes judicial or legislative constraints on the executive, and the deliberative components—has significantly declined over the past ten years. According to the report, Mexico has moved into a grey zone between electoral democracy and electoral autocracy (Nord et al. 2025).

b) The implications of the elimination of INAI for societal accountability

A fundamental aspect of a constitutional democracy is the right to access information, government transparency, and accountability. The various mechanisms for accountability within a democratic regime enable citizens to demand responsibility from elected officials or public servants and, when necessary, reward or penalize them based on their performance. Transparency entails access to public information; both are necessary but insufficient conditions for accountability. Comparative evidence demonstrates that guaranteeing the right to information can take place through different methods. The most common method is establishing a legal mandate and a specific obligation for the state authorities to comply to. Another approach is to appoint a commissioner, as seen in the United Kingdom or Canada, or a collegiate body that guarantees such a legal mandate, as Mexico had done since 2002 until the 2024 constitutional reform.

The evolution of transparency and the right to access information has been integral to Mexico's democratic transition. The right to information was first recognized at the constitutional level in 1977. The federal institute IFAI was established in 2002 following the first presidential alternation. Later, in 2013, the federal institute became a national autonomous constitutional body, INAI. Entrusting the protection of personal data and guaranteeing the right to information to a collegiate body with constitutional autonomy becomes even more relevant when evidence indicates that presidential federal regimes are more prone to corruption and less transparent than parliamentary ones (Gerring and Thacker 2004). Since March 2023, three of the seven seats on INAI's council were vacant due to the Senate failing to make appointments, leaving it without a quorum.

Undermining the INAI before extinguishing it has impacted evaluations of Mexican perceptions of corruption, as the metrics by Transparency International demonstrate.[8] Mexico received the lowest indicator since 2012, ranking 140th out of the 180 countries analyzed, just above Guatemala and below Bolivia, Peru, and Brazil. The deterioration of Mexico's CPI index within a year is also notable, as it dropped from 31 to 26 points, a decline comparable to that of El Salvador over four years.

Considering that the 2024 election weakened the separation of powers—due to the reelection of an incumbent party with a legislative supermajority—societal accountability mechanisms through which citizens can seek alternative forms of political control could be crucial elements of non-electoral and vertical control (Smulovitz and Peruzzotti 2000). Specifically, the INAI played a crucial role in enabling Mexican citizens' right to access information, promoting transparency in government activities, and ensuring accountability. The more than one million information requests submitted to federal agencies through the INAI between 2003 and 2015 —which on numerous occasions helped expose governmental wrongdoing in cases of human rights violations, criminal collusion, illicit enrichment, and corruption[9]—serve as evidence of how Mexican citizens had actively demanded information pertinent to public accountability (Berliner et al. 2018). Therefore, the dissolution of the INAI has closed a significant mechanism for citizen political participation.

The weakening of societal accountability through the elimination of INAI adds to organized crime actions that have already significantly restricted electoral forms of political participation in Mexico. Rising violence and targeted attacks against politicians are associated with lower voter turnout on Election Day (Trelles and Carreras 2012; Ley 2018; Data Cívica 2024). Moreover, these

[8] For more information, visit https://www.transparency.org/en/cpi/2024/index/mex

[9] The INAI was crucial in ensuring transparency in the case of the killing of 22 civilians by the Mexican military in Tlatlaya, Estado de México, the case of the disappearance of 43 students in Ayotzinapa, Guerrero, as well as the disclosure of the information about the purchase of the luxurious property, Casa Blanca, by the wife of President Enrique Peña Nieto.

criminal activities have also affected essential elements of the Mexican electoral model, which depends on citizens acting as poll workers and counting votes. This system aims to build greater trust in the electoral process by engaging ordinary citizens, instead of bureaucrats or party officials, in organizing elections. However, research indicates that citizens residing in violent contexts are less likely to participate as poll workers (Cantú and Ley 2017; Data Cívica 2024). Therefore, removing the INAI worsens the existing limitations and threats to citizen participation and accountability that organized crime has already imposed in the electoral arena.

To sum up, the 2024 constitutional reforms aimed at overhauling the judiciary and eliminating the INAI pose serious institutional threats to democracy, adding to the already considerable risks posed by organized crime as an extra-legal actor. These constitutional reforms weakened critical institutional safeguards that had protected horizontal accountability mechanisms in Mexican democracy. Furthermore, judicial reform creates new opportunities for organized crime to influence democratic governance through violent acts aimed at elected officials, particularly those within the security and judicial systems. The elimination of the INAI further undermines avenues for citizen engagement that OCGs have already been attacking. These reforms diminish the state's ability to uphold the rule of law and protect human rights, creating a more permissive environment for organized crime to thrive and deepening the threats to both horizontal and societal accountability mechanisms within Mexican democracy.

Erosion of civilian control over the military amid rising criminal governance

Civilian control over the military is a fundamental principle of constitutional democracy in which elected officials make decisions regarding security and the use of armed forces rather than the other way around. Giving a more prominent role to the military can be considered democratic backsliding (Kohn 2001; Pion 2013; Mainwaring and Pérez Liñán 2023). This crucial element in democratic governance is particularly worrisome in the Latin American region, where practically all countries currently rely on some form of militarization of public security or their domestic security apparatus (Flores-Macías and Zarkin 2021). As Flores-Macías (2023) highlights, the increase in violent crime across Latin America has prompted executives to expand their powers and declare official states of exception—as seen in El Salvador, Honduras, or Ecuador—or to militarize public life in general—as in Brazil or Colombia. With security and other public policies in the hands of the armed forces, along with diminished horizontal accountability checks, civilian control has come into question in several countries, generating concerns about human rights protection in the region, particularly given the lack of transparency and expansive autonomy of the military. Moreover, these militarized approaches to public security and executive aggrandizement have tended to circumvent other branches of government, deepening the weaknesses of sub-

national authorities and their law enforcement capacity amid criminal threats. In general, Latin American presidents have leveraged public security crises to expand their powers and those of the military, significantly disrupting the civil-military balance (Flores-Macías 2023).

The constitutional reform enacted on September 30, 2024, to officially incorporate the National Guard under the command of the Ministry of Defense (Sedena) legally formalizes what had already been occurring *de facto* throughout the López Obrador administration. Since the establishment of the National Guard in 2019, most of its personnel have already come from Sedena. Furthermore, Sedena also took control of its operations in 2020. Still, it is especially concerning that the legal incorporation of the National Guard into Sedena will further expand the militarization of public life and contribute to the lack of transparency and reduced civilian oversight of the military. Integrating the National Guard into the armed forces places it under military jurisdiction. Although military members can be tried in civilian courts for crimes against civilians since 2014, they are, in practice, shielded by an opaque military justice system (Ríos-Figueroa 2019; Flores-Macías 2023), which will now also have jurisdiction over the National Guard. Considering that the militarization of public policy is likely to result in violent responses by organized crime and human rights violations (Atuesta 2017; Lessing 2017; Flores-Macías and Zarkin 2024), this reform opens further opportunities for the exercise of both criminal and state-led violence. Ultimately, this constitutional reform expands presidential powers (Flores-Macías 2023), as the executive can utilize the National Guard for internal security and external defense tasks—vaguely defined concepts that can be conveniently leveraged for political objectives, especially in a unified government with a legislative supermajority.

The consolidation of militarization overlooks the potential and urgent alternatives for addressing violence and, most importantly, for effectively undermining the foundations of organized crime: the dismantling of informal protection networks (Trejo and Ley 2020). It is worth noting, however, that in December 2024, just two months into President Sheinbaum's government, her security cabinet—including the military and the National Guard—in coordination with authorities from Estado de México, a Morena-ruled state, launched "*Operativo Enjambre*." This was a strategic initiative to dismantle the informal protection networks between criminal organizations and certain local actors who may have provided them with protection or resources. The associated actions extended over a dozen municipalities, resulting in over fifty arrests of key security officers and a couple of mayors (El Universal 2025). Its potential to bring lasting change hinges on critical factors beyond law enforcement actions alone. Without substantial legal consequences for those public authorities colluded with organized crime, along with the simultaneous strengthening of municipal institutions and local government capacities, the initiative risks failing to create a significant or lasting impact, despite its increased potential for curbing crime (Trejo et al. 2018; Trejo and Nieto 2023). In such a case, militarization is likely

to gain more traction due to the increasing demand for iron-fist policies and militarized approaches from the electorate (Flores-Macías and Zarkin 2022).

With most states now governed by Morena (Map 1), President Sheinbaum has a unique opportunity to deliver results by implementing coordinated security actions that effectively control crime (Durán-Martínez 2017; Trejo and Ley 2020). If the government seizes this opportunity and effectively implements policies that effectively dismantle the widespread informal state-sponsored protection networks that have sustained organized crime for decades in Mexico, Sheinbaum can deliver results on the most pressing issue identified by the public: security (ENVIPE 2024). However, these actions are costly, and her party's unity may suffer along the way. Still, this course of action could be one of the few positive aspects of the governing party's supermajority and significant territorial presence today without further compromising the protection of rights and democratic accountability checks.

IV. CONCLUDING REMARKS

Democracy can backslide because of international factors, as well as regressive reforms pushed from within (Diamond 2020). The latter have been more extensively explored, typically following one of two routes. First, an overhaul of the judiciary, enabling rulers to interpret the laws to serve their interests. Second, the strategic use of a legislative supermajority to overhaul the constitution and enact reforms that threaten democracy, without negotiation with opposition parties or organized civil society, largely because of a highly popular executive. The 2024 electoral result made both regressive routes feasible in Mexico.

Claudia Sheinbaum won an overwhelming presidential victory and is backed by a ruling coalition that secured a legislative supermajority—unprecedented since the democratic transition—that enabled the approval of extensive constitutional reforms without the opposition's support. We focus on three constitutional reforms approved soon after the new Congress took office in 2024. A judicial reform that will eventually remove all judges and radically transform their selection process. A reform that eliminated a key autonomous body. Lastly, a reform that officially incorporated the National Guard was under the command of the Ministry of Defense.

These reforms have significantly weakened horizontal and societal accountability mechanisms, primarily by diminishing judicial independence and undermining civil society's ability to hold the executive accountable. First, a judicial reform that replaces all justices, magistrates, and judges significantly undermines the separation of powers and the rule of law. Second, dismantling INAI reduces the protection of rights and government transparency. Citizens can still seek compliance in court, but they face a much weaker judiciary. Third, the expansion and legalization of militarized approaches to public security has further increased executive power and will continue to erode the rule of law.

The three examined constitutional reforms further undermine constitutional democracy through their interconnections with organized crime's political role. Criminal groups have strategically deployed violence against politicians to influence elections and decision-making. Nationwide judicial elections create another avenue for the increasing influence of organized crime groups in democratic processes. Also, the dismantling of one of the main channels of societal accountability deepens the already deleterious effects of criminal violence on electoral accountability. Finally, the expansive militarization of security policy exacerbates criminal violence, along with all its detrimental consequences for institutional trust and democratic support, ultimately entrenching the role of organized crime in shaping the country's political landscape. Overall, the Mexican case illustrates that democratic backsliding can occur through institutional *and* non-institutional threats.

In retrospect, the institutional guardrails established during the democratic transition to check the executive's power inherited from Mexico's authoritarian regime have proven insufficient. They were designed during a lengthy period of divided governments, but did not withstand the challenge of two terms with unified governments. The democratic regime failed to produce stronger institutions or opposition parties. The opposition parties were unable to form a competitive coalition leading to the 2024 election. President Sheinbaum initially lacked a supermajority in the Senate but quickly secured one as opposition legislators defected. Supreme Court justices and electoral magistrates also openly aligned with the new government.

Looking forward, Claudia Sheinbaum's first year in office will present significant challenges, including slowing economic growth, adjustments to public spending, and difficult-to-fulfill campaign promises. Furthermore, the Mexican government will have to deal with credible threats from a new populist president in the United States, who also has minimal checks and balances and seeks to enact tough-on-crime security policies. Moreover, international forces could further contribute to expanding militarized approaches to fight crime and, consequently, continue to diminish civil oversight over the armed forces.

The judicial reform compromises separation of powers; however, it has been officially enacted and it is being implemented. On June 1st, 2025, Mexico held its first judicial election. With a participation rate of merely 13%, the credibility of electoral authorities and trust in future elections is likely to suffer, at least in the short run. By the end of the year, Mexico will have diminished constitutional courts and weakened horizontal accountability, thus contributing to democratic backsliding. However, the potential for a regime change remains an open question. As comparative evidence suggeststst, the severity and irreversibility of this erosion largely depend on the resilience of civil society, the democratic commitment of opposition parties, and the reliability of the electoral arena in Mexico.

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